

Court No. - 21

Case :- WRIT - C No. - 7288 of 2024

Petitioner :- Mohammad Ali

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Deena Nath, Deepak Kumar, Raj Rao

Counsel for Respondent :- C.S.C., Jai Krishna Upadhyay

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. The matter taken up in the revised call.
2. Learned counsel for the petitioner is present. None present for respondent Electricity Department.
3. The petitioner has challenged the demand notice dated 02.02.2024 issued by respondent No. 2 for recovery of a sum of Rs. 1,01,897/- from the petitioner and Rs. 30/- as notice charges.
4. The case of the petitioner is that his meter was faulty and he had filed various applications before the authorities for installing a check meter, but without paying any heed to his request, the impugned demand notice has been issued. In other words, the petitioner is challenging the consumption of electricity and consequent bill issued by the Electricity Department.
5. In our opinion, the said dispute can be decided under clause 6.5 of Uttar Pradesh Electricity Supply Code, 2005.
6. Accordingly, the petitioner is permitted to file objection before respondent No. 2 within two weeks along with true attested copy of instant order and in which event respondent No.2 will decide the same by a speaking order within next four weeks.
7. Until objection filed by the petitioner is decided, no coercive action shall be taken on the basis of impugned demand notice.
8. In case, the petitioner fails to file objection within the time frame stipulated above, it shall become open to the respondent to proceed further in the matter in accordance with law.

Order Date :- 6.3.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)